

26CHCP00181 26CHCP00181

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Dept. F47

Date: 9/1/26

Case #26CHCP00181

PETITION TO VACATE

CONTRACTUAL ARBITRATION AWARD

Petition filed on 5/14/26.

MOVING PARTY: Petitioner Hussein Youssef

RESPONDING PARTY: Respondent Northrop Grumman Systems Corporation

RELIEF REQUESTED: An order vacating the 5/12/26 arbitration award.

RULING: Petitioner's request to vacate the arbitration award is denied.

Respondent's request to confirm the arbitration award is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of Petitioner Hussein Youssef's (Petitioner) former employment as an engineer with Respondent Northrop Grumman Systems Corporation (Respondent).

Pursuant to the contract between the parties, in May 2025, Petitioner submitted the employment dispute to arbitration. (Petition, Attachment 4(b)).

The arbitrator granted Respondent's opposed request for leave to file a dispositive motion (summary judgment). (Payer Decl. ¶3, Ex.A). On 4/17/26, Respondent submitted its motion which Petitioner opposed on 4/30/26.

(Payer Decl. ¶4). On 5/1/26, Petitioner emailed the Arbitrator and Respondent stating "Please take a note that the Parties still having unresolved disputed facts and we need your guidance" to which the Arbitrator responded, "Any facts still disputed will be considered in ruling on the motion." (Id. ¶5, Ex.B). On 5/8/26, Respondent submitted its reply to Petitioner's opposition, and the Arbitrator granted the motion in its entirety that same day. (Id. ¶6; Petition to Vacate, Attachment 8(c)).

The Arbitrator's Award states in part that she has "reviewed and considered the motion and written documentary evidence submitted to [her] by the parties." (Petition at Ex.8(c) at p.6).

On 5/12/26, the arbitrator issued a final award in favor of Respondent on all of Petitioner's claims. (Petition, Attachment 8(c))

On 5/14/26, Petitioner filed the instant Petition to Vacate Contractual Arbitration Award against Respondent. On 5/22/26, Respondent filed and electronically served a Response to Petitioner's Petition to Vacate Arbitration Award and Request to Confirm Arbitration Award. On 6/1/26, Petitioner filed (electronically served and served by mail on 5/30/26) an opposition to Respondent's response and request to confirm arbitration award.

ANALYSIS

Respondent's Arbitration and Mediation program to which Petitioner submitted this dispute is governed by the Federal Arbitration Act (FAA) and provides that "[a] reviewing court may only confirm, correct, or vacate an award in accordance with the standards set forth in the Federal Arbitration Act, 9 U.S.C. §§ 1-16, or applicable state law." (Petition, Attachment 4(b), pp.1, 4).

In ruling on a petition to vacate or correct an arbitration award, "the court has only four options: dismiss the petition, vacate, correct the award and confirm, or confirm the award." *Panoche Energy Ctr., LLC* (2016) 1 CA5th 68, 110. Arbitration awards can only be challenged in court on the very limited grounds set forth in CCP 1286.2. See *Zazueta* (1995) 38 CA4th 106, 110; *Moncharsh* (1992) 3 C4th 1, 12-13. Arbitrators ordinarily need not follow the law and may base their decisions on "broad principles of justice and equity." See *Nogueiro* (1988) 203 CA3d 1192, 1194-1195; *Harris* (2002) 96 CA4th 1310, 1313 ("[T]he merits of a controversy that has been submitted to arbitration are not subject to judicial review. This means [courts] may not review the validity of the arbitrator's reasoning, the sufficiency of the evidence supporting the award, or any errors of fact or law that may be included in the award."). A private arbitrator's award does not constitute state action; therefore, there is no due process right to judicial review of the award. See *Rifkind & Sterling, Inc.* (1994) 28 CA4th 1282, 1292 ("(A)n arbitration award is not a product of public law or state proceedings, but rather is a private arrangement, governed by rules of the parties' own making or selection.").

Although the petition is based on the grounds that the award was procured by corruption, fraud, or other undue means; there was misconduct of the arbitrator which substantially prejudiced Petitioner's rights and the arbitrator unfairly refused to hear evidence useful to settle the dispute, Petitioner has failed to provide legal and/or factual support for such claims. (See Petition, No.10.c.(1)(a), (c), (e) and Attachment 10c(2)).

Instead, Petitioner merely argues that the arbitrator disregarded evidence Petitioner believes is favorable to his position, that the arbitrator's procedural decisions were flawed and the award is invalid due to errors in the arbitrator's reasoning due to errors of fact and/or law and the sufficiency of evidence. Such conduct does not amount to fraud or corruption for the purposes of CCP 1286.2. See *Pour Le Bebe, Inc.* (2003) 112 CA4th 810, 828, 833. Additionally, there is no evidence that the arbitrator ignored any evidence in ruling on Respondent's motion for summary judgment and/or making the final arbitration award. Even if such conduct could be said to constitute fraud, corruption or undue means, Petitioner has failed to

establish that it had a substantial or pervasive impact on the arbitration award which is necessary to vacate an arbitration award on such grounds. Id. at 834-835; (See Petition, Attachment 10c(2)). The record shows that the arbitrator considered the evidence submitted by the parties and issued a comprehensive final award which is not subject to vacatur by this court.

Based on the foregoing, the Court finds that the arbitration award should be confirmed. See 9 U.S.C. §9; CCP 1285.2; CCP 1286.

CONCLUSION

Petitioner's request to vacate the arbitration award is denied. Respondent's request to confirm the arbitration award is granted.